

DUTIES & RESPONSIBILITIES OF DIRECTORS

Highlights of NCCG 2018, CBN CG
Guidelines, SEC CG Guidelines
and CAMA 2020

OUTLINE

1. Duties & Responsibilities of Directors
2. Highlights of the Code & Guidelines of Corporate Governance
3. The Role of the Boar and Achieving Effectiveness
4. Identifying Ineffectiveness



DEFINITION AND TYPES OF DIRECTORS

- I. Persons duly appointed by the Company to direct and manage the business of the Company.
- II. In law there is no real distinction between different categories of Directors. It is however an established practice to classify Directors according to their different roles on the Board.
- III. ***"It may be "unhelpful and even misleading to classify company directors as "executive" and "non-executive" for purposes of ascertaining their duties to the company or when any specific or affirmative action is required of them" - Re Elgindata Ltd.***



EXECUTIVE DIRECTORS

- a. Officers holding service contracts and appointed to the Board.
- b. Responsible for the **day-to-day** running of the Company
- c. Employees of the Company expected to devote their whole time and attention to the work of the Company
- d. Have an intimate knowledge of the operations of the company – **creates an imbalance in the amount and quality of information possessed by Executive and Non-Executive Directors**



- e. Entrusted with ensuring that the information laid before the Board by Management is an **accurate reflection of the affairs of the company**

- f. ***Executive Directors need to strike a balance between their management of the company, their fiduciary duties and the independent state of mind required - "is this right for the company?" and not "is this right for the Management of the company?".***



THE MANAGING DIRECTOR

"The Managing Director is the head of Management delegated by the Board to run the affairs of the Company to achieve its strategic objectives for sustainable corporate performance" Principle 4 of the NCCG 2018

- ☐ Establish a culture of integrity, conformance and performance which should be assimilated by personnel at all levels of the organization.
- ☐ The MD/ED should declare any conflict of interest on appointment and annually thereafter. In the event that he becomes aware of any potential conflicts of interest at any point, he should disclose same at the first possible opportunity.



THE MANAGING DIRECTOR

- ❑ *The MD/ED should not be a member of the Committees responsible for remuneration, audit or nomination and governance and shall not chair any Board Committee*
- ❑ May be appointed NED in other companies provided such appointment is not detrimental to his responsibilities and in accordance with Board approved Policy.
- ❑ Tenure -maximum of 12 years - **CBN Corporate Governance Guidelines**



NON-EXECUTIVE DIRECTORS

- I. Not involved in the day-to-day management of the Company
- II. Appointed from outside the Company
- III. Expected to provide **objective judgment, independent** of Management on issues facing the company
- IV. Should meet from time to time without the Executive Directors to consider performance and actions of executive management**
- V. An individual in the full-time employment of the holding company is considered a Non-Executive Director of a subsidiary - unless involved in the day-to-day management of the subsidiary
- VI. Tenure -maximum of 12 years - CBN Corporate Governance Guidelines**



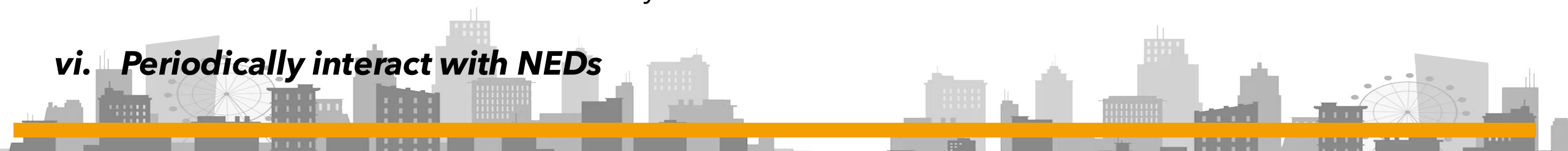
“The Chairman is responsible for providing overall leadership to the Company and the Board, and **eliciting the constructive participation of all Directors** to facilitate the effective direction of the Board”

-Principle 3, NCCG 2018



THE CHAIRMAN'S ROLE

- i. Ensure the effective operations of the Board such that the Board **works as a group** towards achieving the strategic intent/objectives.
- ii. Provide guidance to the MD and be available to him for regular communication.
- iii. ***The MD/CEO/ED should not go on to become Chairman - in exceptional circumstances to adopt a cool off period of 3 years***
- iv. Ensure that Management provides the Directors with accurate timely and adequate information
- v. The Chairman shall not serve on any Board Committee
- vi. ***Periodically interact with NEDs***



“Independent Non-Executive Directors bring a high degree of objectivity to the Board for sustaining stakeholder trust and confidence”- Principle 7, NCCG

- Defined as an individual who;
- Is not a significant shareholder of the Company (>0.01%);
- Is not a representative of a shareholder who has the ability to control Management;
- Had not previously been employed by the Company/Group in the last **5 years**,



INDEPENDENT DIRECTORS

- Is not a close family member of an adviser, Director, senior employee, consultant, auditor, creditor, supplier, *customer* or substantial shareholder
- Has had no contractual/business relationship with the Company in the last **5 years**.
- Has not been a regulator in the last **3 years**
- Does not render professional, consultancy or other advisory service
- Receives no additional remuneration other than Directors fees and allowances



“The above-mentioned criteria for establishing the independent status of an INED are not exhaustive but should be considered as examples of some of those relationships or circumstances which may impair, or appear to impair an INED’s independent judgment”.

- ***The Board should annually ascertain and confirm the continued independence of each INED of the Company.***
- ***Reclassification of an existing NED into an INED on the same Board is not desirable.***



INDEPENDENT DIRECTORS - CBN Corporate Governance Guidelines

"An INED shall have sound knowledge of the operations, relevant laws and regulations guiding the banking sector." -Guideline 3.5.1 of the CBN Corporate Governance Guidelines

- The tenure for INEDs shall not exceed 2 terms of 4years each. - **8 years**
- An INED on the Board of a bank shall not:
 - ❖ be a former director or employee who has served in the bank at a senior management level.
 - ❖ be a former employee below senior management level, within the last **5 years**;
 - ❖ have any immediate family member as a current employee in senior management position;



INDEPENDENT DIRECTORS - CBN Corporate Governance Guidelines

- ❖ have material relationship with the bank or any of its officers, ACE members (in the case of an NIB), major shareholders, subsidiaries and affiliates;
- ❖ provide financial, legal or consulting services to the bank or its subsidiaries/affiliates or has done so in the past **5 years**;
- ❖ borrow funds from the bank, its officers, subsidiaries and affiliates;
- ❖ be part of management, executive committee or board of trustees of an institution, charitable or otherwise, supported by the bank; and
- ❖ have served previously on the Board of its FHC, subsidiary or related entity within the banking group



DUTIES & LIABILITIES OF DIRECTORS

Directors stand in a Fiduciary relationship with the Bank (Section 305 of CAMA)

"Fiduciary"- serving the interest of others rather than personal interests.

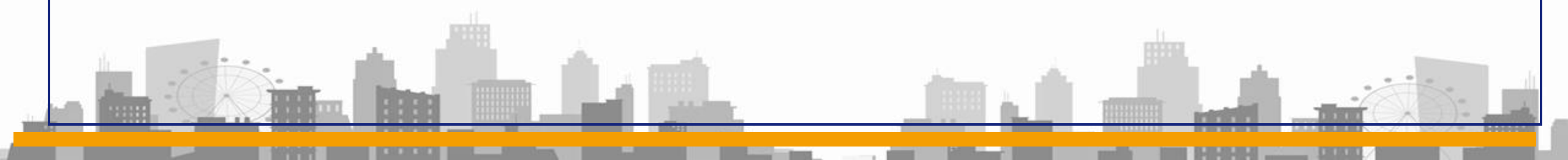
They are expected to :

- ❖ Act in good faith at all times – A duty primarily owed to **all stakeholders**.
- ❖ Remain ultimately responsible for delegated duties
- ❖ Exercise power only for proper purpose - if not, they may be liable for losses incurred.
- ❖ Exercise care and skill – what a prudent Director would do in comparable circumstances.
- ❖ Not to make secret profits (S313)
- ❖ Protect corporate property, opportunity or information – **confidentiality**.
- ❖ **Not to fetter their discretion.**
- ❖ **Not to allow personal interests to conflict with their duties and responsibilities as Directors.**



Case Facts

Grenda Plc (Manufacturers of Baby Cereal) recently recalled a batch of contaminated cereal that had reportedly caused significant harm (including hearing and visual impairment) to many babies. A class action has been instituted and the Board has convened an emergency meeting to decide next steps. A decision needs to be taken regarding legal representation. Across the country, there are two top law firms with expertise in this area of the law. **Clarkson LLP** and **Lakeshore LLP**. **Clarkson** has been retained by the plaintiffs. The principal partner of **Lakeshore** is married to the CEO of **Grenda Plc**.



DUTY TO AVOID CONFLICT OF INTEREST

Actual Conflict of Interest

This occurs when a director or the Board is confronted with a dilemma and the decision or action taken in such situation will result in personal gains or benefits to him often in detriment to the company

Potential Conflict of Interest

Here, the director is confronted with a decision which may not yield a pecuniary private benefit immediately, but momentarily could result in benefit to the director

Perceived Conflict of Interest

The situation in this context may not give rise to a conflict but a third party observing the situation may think that a conflict of interest exists



4-STEP RESOLUTION OF CONFLICT-OF-INTEREST SITUATIONS

1

Step ONE

Identify a real, perceived or potential conflict of interest



2

Step TWO

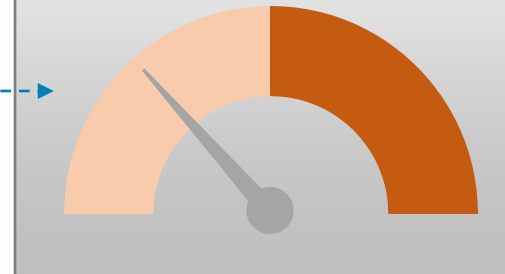
Disclose the conflict to the Board.



3

Step THREE

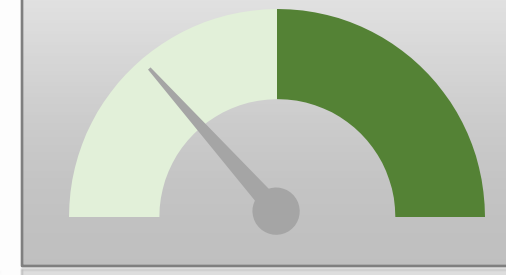
The Board deliberates based on the policy and circumstances .



4

Step FOUR

A decision is communicated to the director.

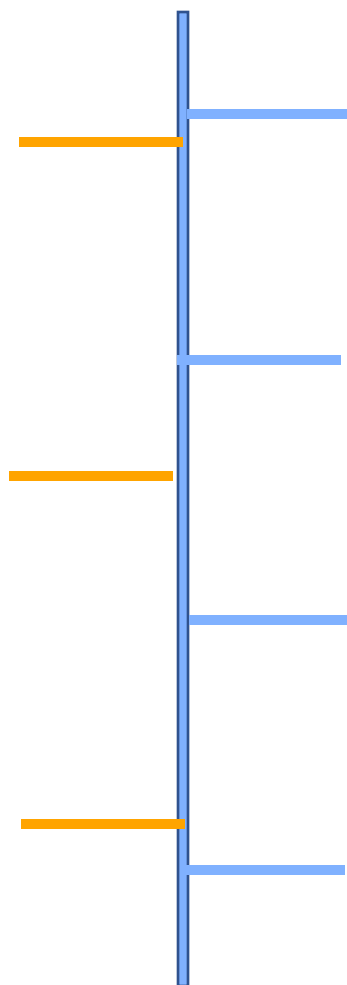


DIRECTORS' DUTIES AND RESPONSIBILITIES UNDER CAMA 2020

Directors to be cognizant of the impact of the company's operations on the environment where it carries on business operations Section 305 (3)

Duty to observe restriction on multiple Directorship to a maximum of five public companies per time Section 307(2)

The Chief Executive Officer (CEO) and the Chief Finance Officer (CFO) are required to certify that the officer who signed the financial reports complied with the provisions of CAMA Section 405



Directors as trustees of the Company's Property Section 309

Responsibility of ensuring accuracy of Financial Statements Section 388

Duty to disclose interests in contracts Section 303

Duty to delegate without abdicating Section 305(7)

DIRECTORS' DUTIES AND RESPONSIBILITIES - MEASURING & MONITORING PERFORMANCE

- Regular performance assessment of the Board, Board Committees and individual directors based on objective set criteria agreed at the beginning of the year.
- Ensure regular management reporting and monitoring
- ***Define Key Performance Indicators for the CEO & EDs and ensure a robust performance appraisal at least once annually***
- The Board should have a well-defined policy on remuneration and reward system - Provide how and to what extent Executive Directors' compensation should be linked to corporate performance.



DUTIES & RESPONSIBILITIES RISK MANAGEMENT & COMPLIANCE

1

Establish a Risk Management Framework with a clear definition of risk strategy, appetite and risk limits

3

Effective oversight of Compliance and Internal Control

5

Establish an effective **Whistle Blowing Policy** known to employees, all stakeholders and the general public.

2

Risk governance with clear roles and responsibilities for the Board and Executive Management

4

Establish **ethical leadership by conduct and value system** - codify a well articulated **Code of Ethics**

DUTIES & RESPONSIBILITIES - TRANSPARENCY & DISCLOSURE

The adoption of the International Financial Reporting Standards (IFRS) underscores the increasing requirements for significantly greater disclosures.

Financial Statements are expected to reflect **a true and fair view** of the business affairs and financial position of the company for a specific period.

Periodic disclosure of interests in service providers by all Directors in an approved format

Provision of **equal, timely, accurate and adequate** information to all shareholders and other key stakeholders

1. Reputational Damage
2. Personal Liability
3. Imprisonment
4. Fines
5. Sued for loses
6. Removal from Office
7. Disqualification



REMOVAL OF DIRECTORS

- Contract of Service should set out the terms of the Director's employment including tenure.
- However, because the appointment is a statutory one, a **director's removal from office is also regulated by law.**
- The Company may by an ordinary resolution at an AGM/EGM of which special notice (twenty eight days' notice) has been given, remove a Director from office.
- Removal of a Director under CAMA shall not deprive the Director of any compensation or damages he may be entitled to under the Contract of Service.
- **Termination of the appointment of the MD or ED does not constitute removal as a Director where the procedure set out under CAMA is not complied with.**
- Casual Vacancy created by the removal of a Director may be filled by the Board at the meeting at which he is removed and ratified at the next AGM.



REMOVAL AND RE-ELECTION UNDER CAMA 2020

- ✓ **Removal of a director is now a basis for disqualification** - directors who are suspended or removed from office in accordance with **Section 288 of CAMA 2020** will be disqualified from being directors of other companies.
- ✓ **Attendance at Board Meetings now a Consideration for Re-Election: Section 284(2)** makes the attendance record of a director one of the factors that should be taken into consideration when presenting a director for re-election. Where any director is to be considered for re-election at a general meeting of a company, the record of his attendance at the meetings of the board during the year preceding the proposed re-election is required to be made available to the members at the general meeting where he is to be re-elected.



EVOLUTION OF CORPORATE GOVERNANCE

2023 - To Date Current Phase

- In July 2023, the CBN introduced new Corporate Governance Guidelines for Commercial, Merchant, Non-Interest, Payment Service Banks and Financial Holding Companies
- In 2018, the **Nigerian Code of Corporate Governance was introduced**
- Industry codes have been re-issued as guidelines

1990 - 2015

- Many issues associated with corporate governance lie outside the legal arena and have an ethical rather than legal nature.
- SEC Code and Industry specific Codes - CBN, NAICOM, PENCOM, NCC

Pre 1990

- Prior to 1990, the principal Company law statute in Nigeria was the Companies Act 1968 modeled after the UK Companies Act 1948.
- It contained provisions on Companies in relation to the board of directors and the members in general meeting





Nigeria Companies and Allied Matters Act (CAMA)

(CAMA)

Allied Matters Act

The Companies and Allied Matters Act 2020 (CAMA) is the principal legislation governing the registration, incorporation, regulation and dissolution of companies in Nigeria. It applies to all public and private companies locally registered or foreign-owned.

On February 14, 2023, the Business Facilitation Act amended CAMA 2020 and some business laws to ease constraints on establishing and operating companies in the country. The Corporate Affairs Commission (CAC) serves as the main administrative organ and regulatory authority for implementing CAMA's provisions on corporate formations, compliance, and governance standards in Nigeria.



The CBN Corporate Governance Guidelines for Commercial, Merchant, Non-Interest, and Payment Services Banks in Nigeria aims to strengthen governance practices in the financial institutions. To monitor its full implementation. All Commercial, Merchant, Non-Interest, and Payment Services Banks are to comply with this Corporate Governance Guidelines and the Nigerian Code of Corporate Governance 2018.



The Nigerian Code of Corporate Governance, 2018 was officially launched on January 15, 2019.

The Code applies to public companies/entities and *"all regulated private companies being companies that file returns to any regulatory authority other than the Federal Inland Revenue Service (FIRS) and the Corporate Affairs Commission (CAC)"*.

The Code does not distinguish between Private, Public, or Public Interest Entities.

The Code serves to harmonize the various sectorial codes.
A Principles based Code with a philosophy of **"Apply & Explain"**

CBN CORPORATE GOVERNANCE GUIDELINES

S/N	Item	CBN Corporate Governance Guidelines
1.	Board Size	Commercial, Merchant and Non-Interest Banks (CMNIBs) shall be a minimum of seven (7) and maximum of fifteen (15) and a minimum of seven (7) and maximum of thirteen (13) for a Payment Service Bank.
2.	Board Composition - Ration of NEDs, INEDs, Eds	The Board shall consist of Executive and Non-Executive Directors. Non-Executive Directors shall be more than Executive Directors on the Board , with at least 3 INEDs - one of whom should have knowledge and experience in innovative financial technology, Information Communication Technology (ICT) and/or cyber security.
3.	Board Diversity	To achieve gender diversity and promote a gender inclusive board, no Bank Board shall consist of only one gender. Banks and FHCs shall take a practical approach to women's economic empowerment in line with Principle 4 of the Nigerian Sustainable Banking Principles.
4	Tenure	The MD, DMD, ED and NEDs shall serve for a maximum tenure of twelve (12) years whilst INEDs shall serve for a maximum tenure of eight (8) years (two terms of four years each).

CBN CG GUIDELINES - COOL OFF PERIOD

- An Executive (ED, DMD or MD/CEO) who exits from the Board of a bank either upon or prior to the expiration of his/her maximum tenure, shall serve out a cooling period of two (2) years before being eligible for appointment as a NED in the same bank, subject to applicable cumulative tenure limits.
- Where an Executive (ED, DMD or MD/CEO) of a bank is appointed to the Board of its FHC in any role, a cool-off period of two years shall apply.
- Transmutation of an INED into any role in the same bank is not permitted.
- A NED shall serve out a cool period of two (2) years before being eligible for appointment in any executive role in the same bank.



CBN CG GUIDELINES - COOL OFF PERIOD

- No cool-off period shall apply when any director in a bank is appointed to the Board of another bank or an FHC outside the bank's group.
- Cool-off period of two (2) years shall apply, where a director from a bank transitions to a sister subsidiary and it results in a change of role. However, a cool-off period shall not apply where there is no change of role.



CBN CORPORATE GOVERNANCE GUIDELINES

S/N	Item	CBN CG Guidelines
5.	Meetings	- The Board and its Committees should meet at least once every quarter - Each member shall attend <i>not less than two-thirds of the meetings</i> of the Board and Board Committees annually. - Report of attendance shall form part of the report to be presented at the AGM. - Quorum for the meetings of the Board and its committees shall be two thirds of members, majority of whom shall be NEDs.
6.	Conflict of Interest	- Directors shall promptly disclose to the Board any real or potential conflict of interest that they may have regarding any matter to be discussed. - Directors <i><u>shall abstain from discussions and voting</u></i> on any matter in which they have or may have a conflict of interest. <i><u>Disclosure must be recorded in the minutes</u></i>



CBN CORPORATE GOVERNANCE GUIDELINES

S/N	Item	CBN CG Guidelines
7.	External Audit	• The tenure of auditors in a bank shall be a maximum period of ten (10) consecutive years, subject to the rotation of audit engagement partner atleast once every five years. • For an audit firm to be reappointed by the same bank, a cooling-off period of ten (10) consecutive years shall be observed. • Subject to the approval of the CBN, there shall be a cooling-off period of three (3) years between the retirement of a partner from an audit firm currently auditing a bank and the appointment of such partner to the Board of the same bank.

CBN CORPORATE GOVERNANCE GUIDELINES

S/N	Item	CBN CG Guidelines
8.	Director Remuneration	• Every bank must have remuneration policy and disclose same in the Annual Report • A Committee of NEDs shall determine the remuneration of executive Directors • <i>NED remuneration is limited to Directors' fees, sitting allowances and reimbursable travel and hotel expenses</i>



CBN CORPORATE GOVERNANCE GUIDELINES

S/N	Item	CBN CG Guidelines
9.	The Company Secretary	• The functions of a company secretary shall not be outsourced by banks. • The role of the Company Secretary in a CMNIB, <i>shall not be combined with that of the Head Legal/Legal Adviser, without the approval of the CBN.</i> • In the case of PSBs, the function of the Company Secretary may be combined with that of the Head Legal/Legal Adviser. • The Company Secretary shall ensure that all board-related compliance matters are made available to the Executive Compliance Officer (ECO) in a timely manner. • <i>The appointment and removal of the Company Secretary shall be a matter for the Board, subject to CBN's ratification.</i> • The Company Secretary shall report directly to the Board and have an indirect reporting line to the MD/CEO.

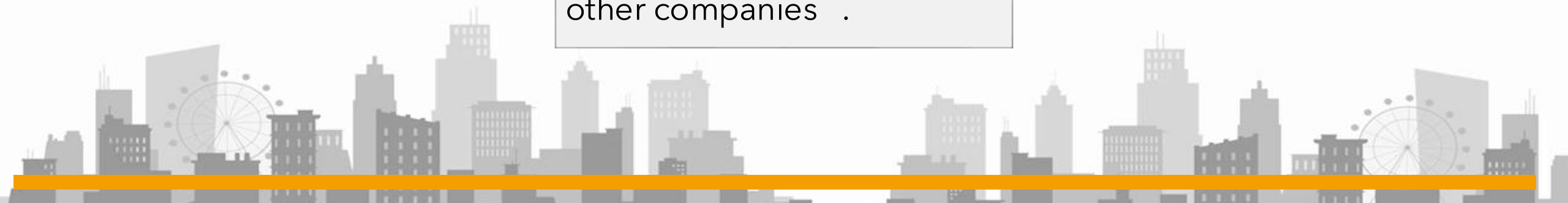
CAMA 2020 - CORPORATE GOVERNANCE RELATED PROVISIONS

Number of INEDs on the Board of a Public Company : *Section 275 mandates all PLCs to have a minimum of 3 INEDS on the Board .*

Restriction on Multiple Directorship : *Section 307 prohibits a person from being a Director in more than five public companies at a time*

Greater Accountability for Directors: Removal of a Director by Shareholders at an AGM is now a ground for disqualification from being appointed as a Director of other companies .

Increased Transparency: Disclosures are now required of persons with significant control i.e. holding above 5% of the shareholding .



1 Billion Dollar Deal



FACEBOOK & INSTAGRAM

Mark Zuckerberg owned 28% of Facebook's stock, and controlled 57% of its voting rights.

Facebook's public offering was only a few weeks away.

- Kevin Systrom owned about 45% of his company.
- 18 months old
- 13 employees
- 35 million users
- No revenue

THE NEGOTIATIONS

- On Thursday, 5 April 2012, Zuckerberg picked up the phone and asked Kevin for a meeting.
- Over the next 3 days, the two CEOs negotiated in the privacy of Mr. Zuckerberg's home.
- On Sunday morning, April 8, Zuckerberg emailed his Board that that he intended to buy Instagram.
- On Monday, the deal was announced.

THE ROLE OF AN EFFECTIVE BOARD

"A successful Company is headed by **an effective Board** which is responsible for providing **entrepreneurial and strategic leadership** as well as promoting **ethical culture** and **responsible corporate citizenship**. As a link between stakeholders and the Company, the Board is to exercise **oversight and control** to **ensure that management acts in the best interest of the shareholders and other stakeholders** while **sustaining the prosperity of the Company**". Principle 1, NCCG



THE ROLE OF THE BOARD

- Accountability
- Leadership
- Strategy & Direction
- Define Corporate Ethical Culture - ***Tone at the Top***
- Measure & Monitor Performance
- Risk Management
- Ensure True & Fair View of Financial Statements
- Succession Planning & Business Continuity



THE ROLE OF THE BOARD

- Select the CEO
- Encourage the CEO
- Advise the CEO
- Evaluate the CEO's Performance
- Compensate the CEO
- Replace the CEO - ***Ensure Succession***



Elements of Board Effectiveness

Board Structure and Composition

Effective Use of Board Committees

Board Dynamics

Board Agenda

Rooting out Dysfunctionality

Performance Evaluation



ELEMENTS OF BOARD EFFECTIVENESS - DIRECTOR APPOINTMENT

Adopt a **formal and rigorous process** in Director appointment and selection

Process should include a careful assessment of Organizational & Board needs - **what skills are required?**

The selection process should be transparent, documented, open and clear.

Should be proactive and strategic.

Board membership should be continuously refreshed



ELEMENTS OF EFFECTIVENESS – BOARD STRUCTURE AND COMPOSITION

An appropriate balance between the 3 types of Directors (NED, INED & ED) – the company requires a unique combination of skills to meet different challenges.

The Board should have **appropriate diversity-
experience, gender, age,
ethnicity, etc**

Clear separation of powers, roles and responsibilities between the Board and Management.

The positions of the Chairman and MD should be separate.

Availability for Board responsibilities – The Board should give careful consideration to “**multiple directorships**”.

The Board should have **an effective Committee system**
– Audit;
Governance/Remuneration and Risk Management Committees – with Charters defining terms of reference, composition, tenure, etc.

ELEMENTS OF EFFECTIVENESS: BOARD COMMITTEES

- Increasingly, Committees are assuming responsibility for **drilling down on specific issues, forming an opinion on such issues and making recommendations to the Board.**
- High Performance Board Committees must be **Proactive and well Informed.**
- Imperatives of Committee Effectiveness include:
 - ✓ **Committee Charters** - purpose, composition, authority, tenure, etc
 - ✓ **Effective Committee Chairs** - availability, strength of character, relevant skills set, respect from peers
 - ✓ **Accountability to the Board** - appropriate reporting and performance appraisal
 - ✓ **Access to Information**
 - ✓ **Training & Development**



ELEMENTS OF EFFECTIVENESS – BOARD DYNAMICS

- Board dynamics refer to the way individual Directors **interact with each other** in the performance of their role as Directors with the objective of collectively generating sustainable economic value for the enterprise.
- Describes how the ***behavior of individual Directors***, interplay with the ***Board Structure, Composition and Processes*** and how this interplay affects the overall performance of the Board
- Components include the ***language*** used in the Boardroom, ***emotional intelligence*** the **culture of constructive challenge and healthy debate** (or absence thereof)
- Output is ultimately the Board **quality of decisions**



INDIVIDUAL ATTRIBUTES THAT PROMOTE BOARD DYNAMICS

- Works well with others (disagrees without being disagreeable)
- Possesses the required business/industry knowledge
- Prepares for and attends meetings punctually, regularly
- Devotes quality time to oversee company affairs
- Is alert and inquisitive
- Asks tough questions without disrespect to others
- Challenges & refines management assumptions

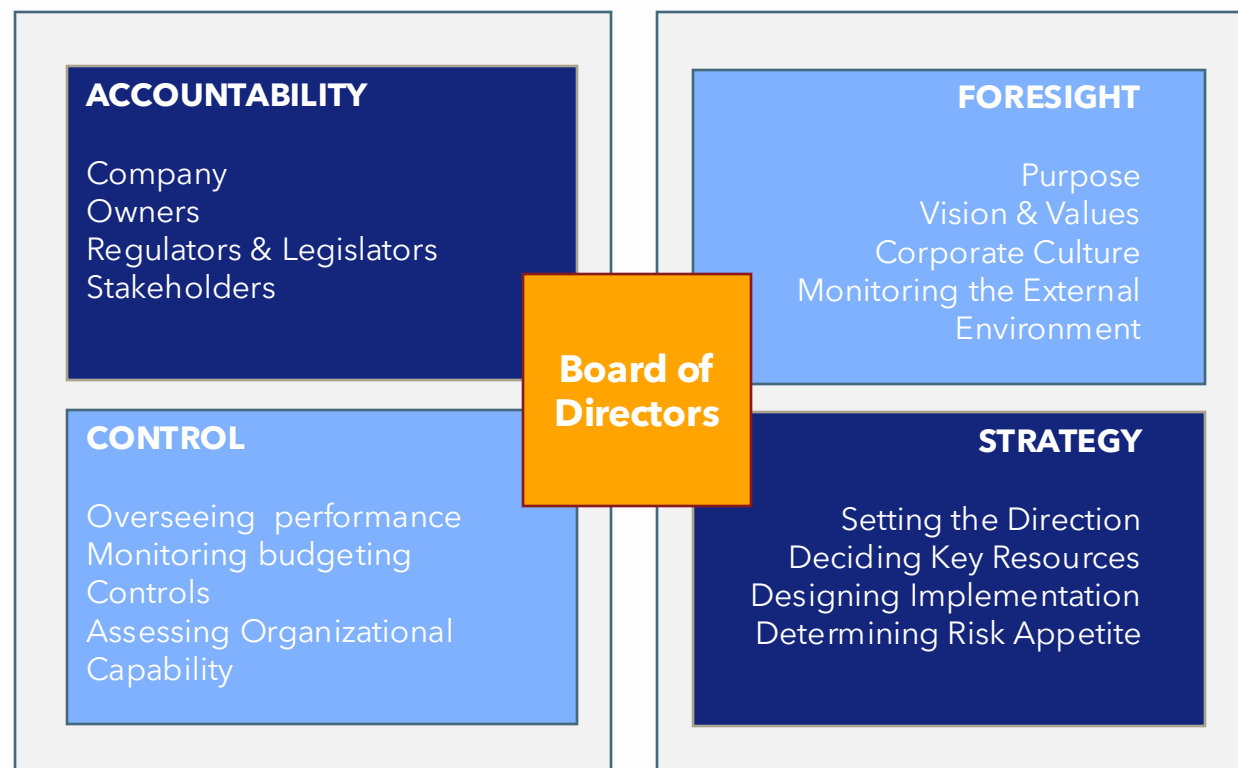
Source : Corporate Governance handbook; KPMG ACI Research.



ELEMENTS OF EFFECTIVENESS - THE BOARD AGENDA

Control: Past

Direction: Future



The role of the Board is to provide **entrepreneurial leadership** within a framework of prudent and **effective controls** which enables risk to be assessed and managed.

THE DYSFUNCTIONAL DIRECTOR

- Often absent at Board meetings
- Always unprepared for meetings
- Never willing to offer a dissenting view or challenge the status quo
- Never declares a conflict of interest but is more often than not personally interested in matters that come up for Board approval
- Has an overbearing or domineering style that suppresses dissent or diversity of opinion
- Wants to be the CEO - constantly second guessing and seeking to micromanage
- Breaches Confidentiality
- "Board Veteran"

ROOTING OUT DYSFUNCTION

- A person whilst highly accomplished in business may be unsuited for the boardroom.
- It is the responsibility of the Chairman of the Board to identify and find ways to deal with these poor-performing or dysfunctional members. This could be done in several stages.
 - Private conversation
 - Coaching (Training)
 - Stringent action (Rotated Out/Removed).
- ***Performance Evaluation & Peer Review are useful tools***



ELEMENTS OF BOARD EFFECTIVENESS-BOARD EVALUATION

- Evaluating the performance of the board is an important mechanism for scrutinizing the activities of the board and enhancing transparency and accountability to stakeholders.
- **What is being evaluated?**
 - Board Structure & Composition
 - Operations and Effectiveness
 - Oversight of Strategy, Risk Management & Compliance
 - Transparency and Disclosure
 - Corporate Citizenship



BOARD EFFECTIVENESS – RED FLAGS

- Opaque Director Selection Process
- Ineffective Chair
- Overbearing CEO/Chairman
- Ineffective Directors
- Disruptive/Dysfunctional Directors
- Lack of Focus
- Poor Management Reporting - information asymmetry
- “Time Wasting” Board Meetings
- Ineffective Committee System
- Group think - lack of diversity
- Ineffective Secretariat
- Untenured Directors
- Succession Plan not in place
- No dispute resolution mechanism
- Too large/Too Small
- Self Interest
- No Performance Management Mechanism





*Thank
You!*

